

24CMCV00589 24CMCV00589

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-16

Motion: DEFENDANT'S MOTION TO DISMISS FOR PLAINTIFF'S ABANDONMENT OF AND FAILURE TO PROSECUTE
ACTION DATE: September 16, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV00589 Hearing Date: September 16, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

RUBY

LEE MYERS,

Plaintiff,

vs.

GLOBAL PARATRANSIT, INC.;;
and DOES 1 to 50, Inclusive,

Defendants.

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CASE NO: 24CMCV00589

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION TO
DISMISS FOR PLAINTIFF'S ABANDONMENT OF AND FAILURE TO PROSECUTE ACTION

DATE: September 16, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant
Global Paratransit, Inc.

Responding Party: Plaintiff
Ruby Lee Myers

Notice: Ok

Tentative Ruling: Defendant's Motion to Order
the Court to Dismiss for Lack of Prosecution is CONDITIONALLY GRANTED.

I.

BACKGROUND

This is an action premised in alleged negligence. Plaintiff Ruby Lee Myers alleges that, on or about November 14, 2023, she was a passenger within an Access Services vehicle, whose subject contractor was Defendant Global Paratransit, Inc. ("Global") when the driver of said vehicle struck a pole in a parking lot, causing Plaintiff to hit her head on the window in the vehicle and suffer injury and damage.

On April 22, 2024, Plaintiff filed her Complaint asserting causes of action for (1) Negligence, (2) Negligent Entrustment, and (3) Negligent Hiring, Supervision & Retention.

On July 9, 2024, Global filed its Answer.

On May 7, 2026, Global filed the instant Motion to Dismiss for Plaintiff's Abandonment of and Failure to Prosecute Action.

On May 15, 2026, Plaintiff filed an Opposition.

As of September 11, 2026, Defendant has not filed a Reply. Pursuant to Code Civ. Proc. § 1005(b), all reply papers must be filed and served at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal Standard

"The court may in its discretion dismiss an action for delay in prosecution...on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc. § 583.410(a).) "In a proceeding for dismissal of an action pursuant to this article for delay in prosecution the court in its discretion may require as a condition of granting or denial of

dismissal that the parties comply with such terms as appear to the court proper to effectuate substantial justice.” (Code Civ. Proc. § 583.430(a).)

As

“[g]uided by the policies set forth in Code of Civil Procedure section 583.130[1][.],”

Rule of Court 3.1342 proscribes a list of relevant factors for the court to consider on such motion:

(1)

The

court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;

(2)

The

diligence in seeking to effect service of process;

(3)

The

extent to which the parties engaged in any settlement negotiations or discussions;

(4)

The

diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;

(5)

The

nature and complexity of the case;

(6)

The

law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;

(7)

The

nature of any extensions of time or other delay attributable to either party;

(8)

The

condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;

(9)

Whether

the interests of justice are best served by dismissal or trial of the case; and

(10)

Any other fact or circumstance relevant to a fair determination of the issue.

(Cal.

R. Ct., Rule 3.1342(e).)

B.

Discussion

Defendant moves the Court for an order dismissing this action. Defendant contends it learned that Plaintiff passed away on November 29, 2025, and no personal representative or successor-in-interest has substituted so that the action may continue. Defendant argues that, given the failure to substitute a successor-in-interest, the Court should exercise the discretion afforded to it pursuant to Code of Civil Procedure § 583.410 to dismiss this matter for failure to prosecute.

Plaintiff's counsel argues in opposition that Plaintiff's passing does not constitute abandonment because causes of action survive the death of a party and may be continued through a personal representative or successor-in-interest pursuant to Code of Civil Procedure §§ 377.20 and 377.30 and counsel has been transparent throughout the litigation regarding Plaintiff's condition. Plaintiff argues Defendant has acknowledged the need for substitution and has agreed to continue trial to allow time for substitution and therefore Defendant cannot now claim prejudice. Plaintiff's counsel Evan Ghaffari ("Ghaffari") attests that he is currently in the process of obtaining the official death certificate and confirming the legally authorized successor-in-interest, but those steps cannot be completed instantly. (Ghaffari Decl., ¶¶ 4-6.)

After the death of a plaintiff, the court, on motion, shall allow a pending action that does not abate to be continued by the decedent's personal representative or successor-in-interest. (Code Civ. Proc. § 377.31.) The instant action, premised in negligence resulting in personal injury, appears of the sort that does not abate and may be continued by a successor-in-interest after Plaintiff's death. (See *Adams v. Superior Court* (2011) 196 Cal.App.4th 71.)

While the nature of this litigation appears to allow it to be continued by a successor-in-interest, no such application has been filed in the ensuing approximately ten months since Plaintiff's passing.

Plaintiff commenced this action on April 22, 2024. In August 2025, the parties filed their first stipulation to continue trial. (See *Stipulation to Continue Trial*, filed 8/6/25.) Via the parties' August 2025 stipulation, trial was continued from September 22, 2025 to March 2, 2026. (See *Id.*)

Plaintiff passed away on November 29, 2025. (See *Opp.*, p. 1:24-25.)

On January 12, 2026, acknowledging Plaintiff's passing, the parties filed their second stipulation to continue trial. (See *Stipulation to Continue Trial*, filed 1/12/26.) Via the parties' January 12, 2026 stipulation, trial was continued from March 2, 2026 to September 14, 2026. (See *Id.*)

On May 18, 2026, the Court heard and granted Defendant's Ex Parte Application to advance hearing on the present motion. Recognizing that Plaintiff had passed away and there was no successor-in-interest, the Court continued trial for a third time, from the then-scheduled September 14, 2026 date to the currently scheduled November 2, 2026 date. (See *Minute Order*, 5/18/26.)

After considering the factors listed in California Rules of Court, Rule 3.1342, the Court determines that the length of time since Plaintiff's death and the failure to seek substitution of a successor-in-interest

warrants discretionary relief. In

fashioning its relief, the Court is cognizant of: (1) the limitations placed on Defendant by the current lack of a Plaintiff while staring down approaching deadlines; (2) Plaintiff's counsel's attestations as to efforts to secure a successor-in-interest; (3) the length of time that has elapsed since Plaintiff's passing; (4) the multiple trial continuances that have already been granted; and (5) the general policy favoring trial or other disposition of an action on the merits. With the aforementioned in mind, the Court rules as follows.

Defendant's motion is CONDITIONALLY GRANTED, in accordance with and conditioned upon the following:

1.

With

the exception of filing any motion to for leave to substitute Plaintiff's successor-in-interest or any filing having to do with the substitution of a potential successor-in-interest, this matter is ordered stayed in its entirety until December 21, 2026. All dates on calendar, including the Trial and Final Status Conference dates, are hereby vacated.

2.

An

OSC re: Dismissal for Failure to Prosecute is set for December 21, 2026 at 8:30 a.m. in Dept. E. Plaintiff has until then to move to substitute a successor-in-interest.[2] Failure to procure a successor-in-interest by December 21, 2026 will result in dismissal for failure to prosecute. If a successor-in-interest is secured or if a motion to allow substitution of a successor-in-interest is pending at the time of the December 21, 2026 hearing, the hearing will instead be heard as a Trial Setting Conference, the stay will be lifted, and trial will be set on an expedited schedule.

[1] "It is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence

in the prosecution of an action in construing the provisions of this chapter." (Code Civ. Proc. § 583.130.)

[2] In all, at the time of the December 21, 2026 hearing, Plaintiff will have had over a year to identify and move to substitute a successor-in-interest.